

Chief Justice's Court

Case :- WRIT - C No. - 6105 of 2011

Petitioner :- Dhanee Ram

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Gaurav Sharma

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Ferdino Inacio Rebello,Chief Justice

Hon'ble Vineet Saran,J.

The grievance of the petitioner is that though he has 3 HP electric connection, he has been charged by the respondents for 10 HP electric connection. Petitioner has brought to attention the inspection report of the respondents dated 18.03.2007, which shows that the inspection was carried and the motor of 3HP was found being used for irrigation.

The question is whether in such matters this Court should exercise extraordinary jurisdiction or not. Learned counsel for the petitioner has brought to our attention two orders passed by this Court being Writ Petition No.53979 of 2008 and Writ Petition No.18436 of 2009, wherein interim relief has been granted and petitions are pending.

In our opinion, under the provisions of the Uttar Pradesh Electricity Supply Code, 2005, there is a mechanism to resolve such disputes being Consumer Grievance Redressal Forum and Ombudsman.

The present issue pertains to billing covered by 7.7.4 and that will squarely be covered by Clause 7.10(ii) of Uttar Pradesh Electricity Supply Code, 2005.

In the light of that the present writ petition is being disposed of with the following directions :

1. The petitioner from the year 2006 till date will pay the electricity charges on the basis that he has an electric connection of 3HP.
2. The respondents to give an interim bill for the said period at the rate of 3 HP electric connection within 15 days.
3. All the payment of the bill will be made within 30 days

thereafter.

If such payment is made, electric connection not be disconnected till such time that the complaint preferred by the petitioner is disposed of according to law. The petitioner to move Consumer Grievance Redressal Forum within 30 days from today.

With the above observations, petition stands disposed of.

Order Date :- 1.2.2011

VMA

(F.I. Rebello, C.J.)

(Vineet Saran, J.)